

IN THE SENATE

SENATE BILL NO. 1246

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO LAW ENFORCEMENT OFFICERS; AMENDING CHAPTER 7, TITLE 18, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 18-713, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING LAW ENFORCEMENT OFFICERS AND FACIAL COVERINGS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 7, Title 18, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 18-713, Idaho Code, and to read as follows:

18-713. LAW ENFORCEMENT OFFICERS -- FACIAL COVERINGS. (1) As used in this section:

(a) "Facial covering" means any opaque mask, garment, helmet, headgear, or other item that conceals or obscures the facial identity of an individual, including but not limited to a balaclava, tactical mask, gaiter, ski mask, and any similar type of facial covering or face-shielding item. A facial covering shall not include any of the following:

(i) A translucent face shield or clear mask that does not conceal the wearer's facial identity;

(ii) An N95 medical mask or surgical mask to protect against transmission of disease or infection or any other mask, helmet, or device necessary to protect against exposure to any toxin, gas, smoke, inclement weather, or any other hazardous or harmful environmental condition, including but not limited to air-purifying respirators, full or half masks, or self-contained breathing apparatus;

(iii) A mask, helmet, or device necessary for underwater use, including but not limited to a self-contained breathing apparatus;

(iv) A motorcycle helmet when worn by an officer utilizing a motorcycle or other vehicle that requires a helmet for safe operations while in the performance of his duties; and

(v) Eyewear necessary to protect from the use of retinal weapons such as lasers.

(b) "Law enforcement officer" means a peace officer, as defined in section 19-5101, Idaho Code, employed by a city, county, or other local agency as well as any officer or agent of a federal law enforcement agency or any law enforcement agency of another state or any person acting on behalf of a federal law enforcement agency or law enforcement agency of another state.

(2) A law enforcement officer shall not wear a facial covering that conceals or obscures his facial identity in the performance of his duties, except as expressly authorized in this section.

1 (3) The provisions of this section shall not apply to:

2 (a) Active undercover operations or assignments authorized by super-
3 vising personnel or court order;

4 (b) Tactical operations where protective gear is required for physical
5 safety;

6 (c) Applicable law governing occupational health and safety;

7 (d) Protection of identity during prosecution;

8 (e) Officers assigned to special weapons and tactics (SWAT) team units
9 while actively performing their SWAT responsibilities; and

10 (f) Applicable law governing reasonable accommodations.

11 (4) A willful and knowing violation of this section shall be punishable
12 as an infraction or a misdemeanor.

13 (5) Notwithstanding any other law, any person who is found to have
14 committed an assault, battery, false imprisonment, false arrest, abuse of
15 process, or malicious prosecution against an individual while wearing a
16 facial covering in knowing and willful violation of the provisions of this
17 section shall not be entitled to assert any privilege or immunity for his
18 tortious conduct against a claim of civil liability and shall be liable to
19 that individual for actual damages or statutory damages of no less than ten
20 thousand dollars (\$10,000), whichever is greater.

21 SECTION 2. An emergency existing therefor, which emergency is hereby
22 declared to exist, this act shall be in full force and effect on and after
23 July 1, 2026.